

24STCV25257 24STCV25257

County: los-angeles

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Department: 516

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Case Number: 24STCV25257 Hearing Date: August 31, 2026 Dept: 516

Judge James I. Montgomery

Department 516

Hearing Date: August 31, 2026

Case Name: Gilliam v. General Motors LLC

Case

No.: 24STCV25257

Matter: Motion for Attorney Fees

Moving

Party: Plaintiff Stacy J.

Gilliam

Responding Party: Defendant General Motors LLC

Tentative

Ruling: Plaintiff Stacy J.

Gilliam's motion for attorney fees is granted in part and denied in part.

On September 30, 2024, Plaintiff Stacy

J. Gilliam ("Plaintiff") filed this action against Defendant General Motors LLC

("Defendant"), a Delaware limited liability company, and Does 1 to 10. The

Complaint alleged three causes of action for: (1) violation of the Song-Beverly

Act – breach of express warranty; (2) violation of the Song-Beverly Act –

breach of implied warranty; and (3) violation of the Song-Beverly Act section 179.2, subdivision (b).

On March 2, 2026, Plaintiff filed a conditional notice of settlement.

Plaintiff moves for attorney's fees.

Defendant opposes.

Legal

Standard

Where the buyer of a vehicle prevails in an action under the Song-Beverly Act, he "shall be allowed by the court to recover . . . a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred" (Civ. Code, § 1794, subd. (d).)

"[T]he starting point of every fee award . . . must be a calculation of the attorney's services in terms of the time he has expended on the case. Anchoring the analysis to this concept is the only way of approaching the problem that can claim objectivity, a claim which is obviously vital to the prestige of the bar and the courts." (In re Vitamin Cases (2003) 110 Cal. App. 4th 1041, 1058, [citation omitted].)

"[T]he primary method for establishing the amount of 'reasonable' attorney fees is the lodestar method. The lodestar (or touchstone) is produced by multiplying the number of hours reasonably expended by counsel by a reasonable hourly rate." (Thayer v. Wells Fargo Bank, N.A. (2001) 92 Cal. App. 4th 819, 833.) Under this approach, a base amount is calculated from a compilation of time reasonably spent and reasonable hourly compensation of each attorney. (Serrano v. Priest (1977) 20 Cal.3d 25, 48; Serrano v. Unruh (1982) 32 Cal.3d 621, 639 (Serrano).) A fee request that appears unreasonably inflated is a special circumstance that permits the trial court to reduce the award or deny it altogether. (Serrano, supra, 32 Cal. 3d at p. 635.)

Analysis

Plaintiff

requests fees and costs totaling \$36,050.50. Plaintiff seeks \$23,572.50 in

attorney fees, a lodestar multiplier of 0.5 for an additional amount of \$11,763.75, and \$959.25 in costs.

Reasonableness of Plaintiffs' Counsel's Rates

"A

prevailing party has the burden of showing that the fees incurred were reasonably necessary to the conduct of the litigation, and were reasonable in amount." (Robertson v. Fleetwood Travel Trailers of California, Inc. (2006) 144 Cal.App.4th 785, 817–818 (Robertson).) "[T]he lodestar is the basic fee for comparable legal services in the community; it may be adjusted by the court based on factors including, as relevant herein, (1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award." (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1132 (Ketchum).)

Plaintiff

requests that the Court accept the following rates for the seven attorneys who worked on this case:

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Sepehr Daghighian: \$625.00
hourly rate

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Michael H. Rosenstein: \$700.00
hourly rate

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Brian T. Shippen-Murray : \$550.00
hourly rate

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Michael William Oppenheim: \$350.00 hourly rate

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Alastair Frederick Hamblin: \$550.00 hourly rate

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Mitchel A. Brim: \$550.00

hourly rate

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Miguel A. Ortiz: \$525.00 hourly rate

(Daghighian Decl., ¶¶ 8-13.)

In

opposition, Defendant contends that the hourly rates are excessive and unreasonable. Defendant's argument is insufficient and does not challenge the Plaintiff's Attorneys' hourly rates. Moreover, The Court finds that the hourly rates are reasonable and standard for this type of case, and Plaintiff's declaration supports that finding.

Thus,

the Court accepts Plaintiff's Attorneys' hourly rates as reasonable.

Reasonableness

of Hours

"The

prevailing party and fee applicant bears "the burden of showing that the fees incurred were ... 'reasonably necessary to the conduct of the litigation,' and were 'reasonable in amount.'" [Citation.] "[c]ourts have uniformly held that the party moving for statutory attorney fees or sanctions has the burden of proof"].) It follows that if the prevailing party fails to meet this burden, and the court finds the time expended or amount charged is not reasonable under the circumstances, "then the court must take this into account and award attorney fees in a lesser amount." (Mikhaeilpoor, supra, 48 Cal.App.5th at p. 247.) "[T]he attorney fee statute provides that fees must be based on "actual time expended" and "determined by the court to have been reasonably incurred." (Robertson, supra, 144 Cal.App.4th at p. 819–820.)

Plaintiff

requests that the Court accept all 47 hours expended on this case as reasonable. (Daghighian Decl., ¶¶ 7-13; Ex. A.) Plaintiff argues that she is entitled to compensation for all 47 hours because that is the number of hours her attorneys worked to settle the case. Plaintiff also argues that the

evidence submitted supports her claim.

Defendant

argues that Plaintiff's hours should be reduced by 28.4 hours for clearly excessive, duplicative, block-billed, clerical, or unsupported entries.

Defendants argument is well taken.

Several of

Plaintiff's entries are duplicative of the work another attorney has completed throughout the course of the case. Thus, the Court will impose a \$2,900 reduction.

Similarly,

Plaintiff's request for drafting discovery, the Complaint, meet and confer letters, and protective order is excessive. Plaintiff has not met its burden to justify the hour request. The Court will impose a \$3,000 reduction.

Also, Plaintiff

seeks compensation for 11 hours in relation to this motion before the Court. The Court finds that an experienced attorney such as Sepehr Daghighian does not reasonably require 11 hours. Thus, the Court will impose a \$3,125.00 reduction.

Thus, the

Court will impose a \$9,025.00 reduction.

Fee

Multiplier

"[T]he

trial court is not required to include a fee enhancement to the basic lodestar figure for contingent risk, exceptional skill, or other factors, although it retains discretion to do so in the appropriate case; moreover, the party seeking a fee enhancement bears the burden of proof. In each case, the trial court should consider whether, and to what extent, the attorney and client have been able to mitigate the risk of nonpayment, e.g., because the client has agreed to pay some portion of the lodestar amount regardless of outcome. It should also consider the degree to which the relevant market compensates for contingency risk, extraordinary skill, or other factors under Serrano III." (Ketchum, supra, 24 Cal.4th at p. 1138.)

Plaintiff

argues that she is entitled to a 0.5 fee enhancement. The Court is not persuaded by Plaintiff's argument because she did not meet her burden of proof for such enhancement. Plaintiff did not present any evidence to the Court that her attorneys faced risk when they took Plaintiff's case or that Plaintiff's case was unique. Additionally, there were no dispositive motions in this case or depositions conducted in this case.

Therefore,

the Court denies Plaintiff's request for a fee multiplier.

Costs

Plaintiff requests \$959.25 for costs and expenses incurred in connection with the action. However, a Defendant correctly asserts Plaintiff did not serve a memorandum of costs pursuant to California Rules of Court, rule 3.1700(a)(1).

In reply, Plaintiff argues that

pursuant to Civil Code section 1794, subdivision (d), reasonable costs can be recovered. While Plaintiff can recover reasonable costs, the California Rules of Court establish a precondition to determine whether a party can recover costs.

Here, Plaintiff did not comply with the requirement

and has not provided any authority to excuse the requirement under California Rules of Court, rule 3.1700(a)(1).

Thus, Plaintiff's request for costs is denied.

Conclusion

Plaintiff Stacy J. Gilliam motion for attorney's fees is granted in part and denied in part. Plaintiff is awarded fees in the amount of \$14,547.50.